

HOUSE No. 1363

The Commonwealth of Massachusetts

PRESENTED BY:

Carole A. Fiola

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to extend enhanced Medicaid benefits to eligible hospitals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carole A. Fiola</i>	<i>6th Bristol</i>	<i>1/16/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>1/21/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>7/15/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>1/31/2025</i>

HOUSE No. 1363

By Representative Fiola of Fall River, a petition (accompanied by bill, House, No. 1363) of Carole A. Fiola, Christopher Hendricks and Christopher M. Markey for legislation to extend enhanced Medicaid benefits to eligible hospitals. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to extend enhanced Medicaid benefits to eligible hospitals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) Notwithstanding any general or special law to the contrary, the
2 secretary of health and human services shall direct monthly payments to eligible hospitals in the
3 form of enhanced Medicaid payments, supplemental payments or other appropriate mechanism.
4 Each payment made to an eligible hospital shall equal 5 per cent of the eligible hospital's
5 average monthly Medicaid payments, as determined by the secretary, for inpatient and outpatient
6 acute hospital services for the preceding year or the most recent year for which data is available;
7 provided, however, that such enhanced Medicaid payments shall not be used in subsequent years
8 by the secretary to calculate an eligible hospital's average monthly payment; and provided
9 further, that such payments shall not offset existing Medicaid payments for which an eligible
10 hospital may be qualified to receive. In any fiscal year, the total sum of all payments made to
11 eligible hospitals under this section shall not exceed \$35,000,000.

12 (b) The secretary may require as a condition of receiving payment any such reasonable
13 condition of payment that the secretary determines necessary to ensure the availability, to the
14 extent possible, of federal financial participation for the payments, and the secretary may incur
15 expenses and the comptroller may certify amounts for payment in anticipation of expected
16 receipt of federal financial participation for the payments.

17 (c) The executive office of health and human services may promulgate regulations as
18 necessary to carry out this section.

19 (d) For the purposes of this section “eligible hospital” shall mean a non-profit or
20 municipal acute care hospital licensed under section 51 of chapter 111 that received enhanced
21 medicaid payments under section 63 of chapter 260 of the acts of 2020 in calendar years 2021
22 and 2022.